

2014 SCC OnLine All 6594

Virendra Kumar Mittal v. U.P. Power Corporation Ltd.

(BEFORE SANJAY MISRA AND ANANT KUMAR, JJ.)

Virendra Kumar Mittal Petitioner

v.

U.P. Power Corporation Ltd. and 2 Others

Respondents

Counsel for Petitioner:- Ranjit Saxena, Amit Kumar Mishra, Deepak Saxena

Counsel for Respondent:- Ashutosh Srivastava, Baleshwar Chaturvedi

Writ - C No. 26105 of 2014

Decided on May 9, 2014

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

We have heard Sri. Ranjit Saxena, learned Senior Counsel assisted by Sri. Amit Kumar Mishra, learned counsel for the petitioner, Sri. Ashutosh Srivastava, learned counsel for the respondent no. 2 and Sri. Baleshwar Chaturvedi, learned counsel for the respondents no. 1 and 3. Since all the respondents are represented, notice need not be issued and with the consent of learned counsel for the parties, this writ petition is being decided finally today itself.

The petitioner is aggrieved by the order dated 29.03.2014, whereby the respondent no. 2, Torrent Power Limited has informed the petitioner that he shall be given a new electricity connection subject to payment of the estimate alongwith the earlier theft electricity dues.

Learned counsel for the petitioner has submitted that by an assessment order dated 28.12.2010, the respondents alleged that the petitioner was using electricity unauthorizedly by connecting with the electricity line of the respondents and hence proceeding were initiated against him. According to learned counsel for the petitioner, the proceedings before the Special Judge, (E.C. Act), Agra were initiated by the Torrent power Ltd., respondent no. 2, wherein by an order dated 22.10.2013 the final report submitted by the police has been set aside and the proceedings under Section 135 of the Electricity Act, 2003 has been taken cognizance and notice has been issued to the petitioner. According to him. insofar as the assessment of theft by an order dated

28.12.2010 is concerned, the same is subject to the decision to be taken by the Special Judge (E.C. Act), Agra in the case pending before it at the instance of respondent no. 2, wherein the liability of the petitioner relating to unauthorized use of electricity is yet to be determined. He therefore, states that the respondent no. 2 could not demand any amount other than the estimate for installation of new connection and hence the demand made by the respondent no. 2 vide letter dated 11.11.2013 (Annexure-22 to the writ petition), which included the amount of the theft assessment could not have been demanded against the petitioner.

The petitioner has referred to the proceedings before the Electricity Consumer Dispute Redressal Forum in Case No. 53-A/2013 (*Virendra Kumar Mittal v. Torrent Power Limited*) and has submitted that by an order dated 16.09.2013, the Forum has directed the respondent no. 2 to make available the new electricity connection to the petitioner within one month on completing the requisite formalities. He states that under such circumstance, the demand of theft assessment alongwith estimate for a new electricity connection is illegal and hence the same is liable to be set aside.

Sri Ashutosh Srivastava, learned counsel appearing for the respondent no. 2 has submitted that under Clause 4.3 of the Electricity Supply Code, 2003 it has been clearly provided that for installation of a new electricity connection all the outstanding dues are to be paid up by the consumer. He states that the assessment of theft made against the petitioner is an outstanding due and therefore, the demand made under the impugned letter of the respondent no. 2 requiring the petitioner to deposit the theft assessment amount alongwith estimate for a new electricity connection is in accordance with law.

Learned counsel for the petitioner has then referred to a decision of the Supreme Court in Writ Petition (Criminal) No. 103 of 2013 (*Dr. Meena Chaudhary & Dr. Meena P.N. Singh v. BSES Rajdhani Power Ltd.*) dated 25.06.2013 to state that the theft assessment amount is not an amount which can be realized from the petitioner alongwith the estimate for a new electricity connection. He states that the right of the petitioner to supply of electricity on deposit of the estimate amount is independent of his liability to pay the assessment of theft of electricity which is under consideration before the Special Judge (E.C. Act), Agra.

We have considered the submission of learned counsel for the parties and perused the record. We find that the supply of electricity to the petitioner on payment of the estimate is provided under the Electricity Act. The question whether the assessment of theft of electricity would

be an outstanding amount under Clause 4.3 of the Code is yet to be decided by the Special Judge (E.C. Act) and the proceeding is pending before the Court at the instance of the respondent no. 2. The liability of the petitioner to pay the assessment of theft amount is yet to be determined in the said proceedings before the Special Judge (E.C. Act).

Under such circumstance, we provide that in case the petitioner deposits the estimate provided under the letter dated 11.11.2013 by the respondent no. 2 for installation of a new electricity connection, there will be no reason why the respondent no. 2 would not install the connection upon the petitioner satisfying the formalities required to be done for getting a new electricity connection.

Insofar as the demand of the theft assessment in the letter dated 11.11.2013 is concerned, admittedly the same is under consideration before the Special Judge (E.C. Act) in the proceeding initiated by the respondent no. 2 and therefore, unless the said proceeding are finalized and liability of the petitioner is fixed of the amount of theft assessment, the respondent no. 2 cannot refuse a new electricity connection to the petitioner.

However, looking into the provisions of Clause 4.3 of the Electricity Supply Code, 2003, we find it appropriate to secure the amount demanded by the respondent no. 2 as theft assessment hence the petitioner should furnish security, other than cash or bank guarantee, to the satisfaction of the respondent no. 2 within a period of three weeks from today. Upon doing so, the petitioner will be entitled to comply with all the other requirements as contemplated under the order dated 11.11.2013 (Annexure-22 to the writ petition).

The respondents shall then take a decision on the installation of a new electricity connection in light of the direction dated 16.09.2013 passed by the Electricity Consumer Dispute Redressal Forum within two weeks thereafter.

The writ petition stands disposed of as above.

No order is passed as to costs.

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